

P O R T E R | S C O T T

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Attorneys for Defendant

CSAA INSURANCE EXCHANGE

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

07/17/2026

Clerk of the Court

BY: JEFFREY FLORES

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

CSAA INSURANCE EXCHANGE;

DOES 1 through 50, inclusive;

Defendants.

Case No.: CGC-25-631802

**DEFENDANT CSAA INSURANCE
EXCHANGE'S NOTICE OF MOTION AND
MOTION FOR ATTORNEYS' FEES AND
COSTS UNDER C.C.P. § 425.16(C)**

Date: August 26, 2026

Time: 9:00 a.m.

Dept: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

1 **TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:**

2 PLEASE TAKE NOTICE that on the above date and time and in the above department of the San
3 Francisco County Superior Court, located at 400 McAllister Street, San Francisco, CA 94102, or as soon
4 thereafter as this matter may be heard, Defendant CSAA INSURANCE EXCHANGE will and hereby
5 does move for an Order granting Defendant's Attorneys' Fees and Costs pursuant to Code of Civil
6 Procedure § 425.16(c) and award \$32,928.27 in attorney's fees and costs incurred in this case.

7 This motion is made pursuant to California Code of Civil Procedure § 425.16(c) on the grounds
8 that Plaintiff brought this action targeting Defendant's protected litigation activity and this Court granted
9 Defendant's Anti-SLAPP motion on July 1, 2026.

10 This Motion is based on this Notice, the Memorandum of Points and Authorities in Support
11 thereof, the Declaration of Tyler J. O'Connell, supporting evidence, all pleadings and papers on file, and
12 on such oral and documentary evidence as may be presented at the hearing on the Motion, should one be
13 held.

14 **TENTATIVE RULINGS:**

15 The San Francisco Superior Court adopts CRC 3.1308 as the tentative ruling procedure in civil
16 law and motion and discovery matters. Parties may obtain a tentative ruling issued by the Law and Motion
17 and Discovery Departments by telephoning (415) 551-4000 or visiting the court's website at
18 <https://sf.courts.ca.gov/> and clicking the online services link. Tentative rulings are generally available by
19 3:00 p.m. the day before the hearing. A tentative ruling that does not become available until after 3:00
20 p.m. is a late tentative ruling. A late tentative ruling will indicate that the ruling is late. If a tentative ruling
21 is late, the parties must appear unless all parties agree to submit to a late tentative ruling in which case the
22 Court will adopt the late tentative ruling.

23 Dated: July 17, 2026

24 PORTER SCOTT
25 A PROFESSIONAL CORPORATION

26 *Tyler J. O'Connell*

27 By _____
28 Chad S. Tapp
 Tyler J. O'Connell
 Attorneys for Defendant
 CSAA INSURANCE EXCHANGE

PROOF OF SERVICE

At the time of service, I was over 18 years of age and not a party to this action. My business address is 2180 Harvard Street, Suite 500, Sacramento, California 95815. On July 17, 2026, I served the following document: **DEFENDANTS CSAA INSURANCE EXCHANGE, CARBONE, SMITH & KOYAMA, AND MICHAEL R. CHAMBERS' NOTICE OF MOTION AND MOTION FOR ATTORNEY'S FEES**

	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
X	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

Addressed as follows:

PLAINTIFF, IN PRO PER

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
soltrinox@gmail.com

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed at Sacramento, California on July 17, 2026.

Serena Blithe
Serena Blithe